



Income Tax Department

Ministry of Finance, Government of India

Certificate of no deduction of tax in case of certain entities.

28AB. (1) Subject to the conditions specified in sub-rule (2), a person—

- (a) in receipt of income or deemed income derived from property held under trust wholly for charitable or religious purposes and who claims exemption under section 11 or section 12; or
- (b) required to file a return in respect of a scientific research association, news agency, association or institution, fund or trust or university or other educational institution or any hospital or other medical institution or trade union referred to in sub-section (4C) of section 139,

may make an application to the Assessing Officer for the grant of a certificate under sub-section (1) of section 197 authorizing him to receive incomes without deduction of tax at source.

(2) The conditions referred to in sub-rule (1) are the following, namely :—

- (i) the person concerned has furnished the returns of income for all assessment years for which such returns became due on or before the date on which the application under sub-rule (1) is made; ⁹⁷[and]
- (ii) the trust, scientific research association, news agency, association or institution, fund or trust or university or other educational institution or any hospital or other medical institution or trade union referred to in sub-rule (1) is for the time being approved for the purpose of exemption from income-tax; ⁹⁸[***]
- (iii) ⁹⁹[***]

(3) An application for the certificate is to be made to the Assessing Officer in accordance with sub-rule (1) of rule 28.

(4) The Assessing Officer may issue a certificate authorizing payment of incomes without deduction of tax at source if he is satisfied that all the conditions laid down in sub-rule (2) are fulfilled and the issue of any such certificate will not be prejudicial to the interests of revenue.

(5) The applicant may furnish copies of certificate issued under sub-rule (4) to the person responsible for paying the income for the purpose of no deduction of tax at source.

(6) The certificate shall be valid for the financial year specified therein unless it is cancelled by the Assessing Officer at any time before the expiry of the said financial year.

(7) An application for a fresh certificate may be made, if the assessee so desires, after the expiry of the period of validity of the earlier certificate.

97. Inserted by the IT (Eleventh Amdt.) Rules, 2018, w.e.f. 25-10-2018.

98. Word "and" omitted by the IT (Eleventh Amdt.) Rules, 2018, w.e.f. 25-10-2018.

99. Omitted by the IT (Eleventh Amdt.) Rules, 2018, w.e.f. 25-10-2018.

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